

Meadowlark



Home Care

HIPAA Confidentiality Agreement

- I. HIPAA stands for Health Insurance Portability and Accountability Act. This act was passed in 1996 to protect consumers and their private health information. You have been provided a copy of HIPAA and this agreement serves to acknowledge that receipt.
- II. In-home care is unique in many facets. One of the most direct differences, especially with respect to HIPAA is that our care providers is the fact that our agency is out and about in the community and rendering services in our member's homes.
- III. Because of this, protecting information requires even more diligence. It is important to remember that there are very severe civil and criminal punishments in place for HIPAA violations.
- IV. Disclosures under HIPAA can only occur in one of the follow instances:
 - a. The member has authorized the disclosure and has received the HIPAA guidelines
 - b. The member has authorized this disclosure within their care circle and has signed off on the various entities allowed to communicate their protected health information (PHI).
 - c. The disclosure is solely related to the member receiving the information.
 - d. The disclosure is legally required.
- V. If you, or a member under your care is concerned a HIPAA violation has occurred, please contact ownership immediately for resolution and compliance assurance.
- VI. Because Meadowlark Home Care utilizes HIPAA compliant messaging and scheduling services, you must be extra diligent to not let any of this digital data slip into the wrong hands or become accessible to anyone not authorized to receive the disclosure.